VirtualDAW BETA-Test NDA (Non-Disclosure-Agreement) v1.03

Jan 1st 2025

I as a BETA-Tester ("I", "User", "BETA-Tester", "Tester") acknowledge and agree, that this BETA software testing ("BETA test") is limited to qualified testers, that anything (especially new features / trade secrets) related to the VirtualDAW app ("software", "app") must not be disclosed to the public and that I'll keep any communications about it confidential.
Even if generally qualified as a BETA-Tester there's also a limited number of active BETA-Testers at a time. If approved, I'll be notified through the provided email address I provided.

By accessing and/or using this software, I automatically accept the terms and conditions of this agreement. By continued use of this software I also agree to any modifications to this agreement and any (updated) agreement conditions shown during the install process of the BETA-Version of the software.

I have no ownership of my feedbacks, opinions, suggestions, thoughts and ideas ("feedback"). Also I have no ownership of any intellectual property rights or prorietary rights of that feedback or derived from that feedback.
Instead I can use the obtained serial key, which will only work for that specific version of the app for free, even If I'm no longer a BETA-Tester.
However, I'll not receive any further serial keys for future versions, if I'm no longer a BETA-Tester. And I agree not to share any obtained software and/or serial keys with anyone.

I agree, that all of my provided data through the "issue report" forms may be stored, as laid out in the Googe privacy policy https://policies.google.com/privacy?hl=en-US
It also may be stored on additional devices, for which this privacy policy applies: https://www.freeprivacypolicy.com/live/4aefc3ef-ea8f-4503-9310-22b29bf94ca6.
My personal data will only be stored for the time while I'm applying as or being an active BETA-Tester and used as required for conducting this BETA-Test.

I will not copy, modify, rent, lease, lend or distribute the software.
I also will not reverse engineer, decompile, or disassemble the software, except to the extent such activity is expressly permitted by applicable law.
I also will not use the software for any unlawful purpose or in any manner that could damage, disable, overburden, or impair anyone.

The conditions of this agreement shall be governed by and construed in accordance with German Law.

Salvatory Clause: Should any of the above provisions in this agreement be invalid, this shall not impair the validity of this agreement. It is to be substituted by the provisions coming closest to the intention of both parties which has to be laid down in writing.

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